

02:00 PM

25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 2

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
GEOFFREY W. STEELE

GEOFFREY WM. STEELE'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The unopposed motions of Geoffrey Wm. Steele to be relieved as counsel of record for defendants is denied without prejudice. Counsel has not provided a declaration indicating that the service address is current as required by California Rules of Court, rule 3.1362(d). The Steele declarations state that defendants were served by mail at their last known address. But, the stated method of confirming how the address is current, is confused and circular. The declaration checks the "other" box [3(b)(1)(d)], and then writes "Client has been served via electronic mail and at their last known address". That is not confirmation that either address is current as required by the rule.

It is also noted that there is a pending motion to compel in the case calendared for August 10 that Defendant has not responded to. While the Court acknowledges that this motion was filed a long time ago and that the motion to compel was filed after, it would appear that relieving counsel a week before the motion hearing with no indication that Defendants are aware of that hearing would be unfairly prejudicial.

Any party who contests a tentative ruling must email Dept.11@sanmateocourt.org with a copy to all other parties by 4:00 p.m. stating, without argument, the portion(s) of the tentative ruling that the party contests.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for the prevailing party shall prepare for the Court's signature a written order consistent with the Court's ruling pursuant to California Rules of Court, rule 3.1312 and provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court. Please note that Local Rule 3.403(b)(iv) states in part "prevailing party on a tentative ruling is required to prepare a proposed order REPEATING VERBATIM the tentative ruling" (emphasis added). The order should be e-filed only, do not email or mail a hard copy to the Court.

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25-CIV-03629 RICHARD FRESCHET VS. ALAN LIM, ET AL.

LINE 3

RICHARD FRESCHET
ALAN LIM

BRIAN J. MCSWEENEY
GEOFFREY W. STEELE

GEOFFREY WM. STEELE'S MOTION TO BE RELIEVED AS COUNSEL

TENTATIVE RULING:

The tentative ruling for Line 2 is hereby incorporated by reference and serves at the tentative for Line 3.
